

Calendar Line 3

Case Name: *Catalan v. Ford Motor Co., et al.*

Case No.: 24CV444665

On March 6, 2026, defendants Ford Motor Company and All Star Ford (collectively, “Defendants”) moved for judgment on the pleadings on the first through fourth causes of action, asserting that “Plaintiff’s failure to respond to Ford’s Requests for Admission (‘RFAs’) resulted in a court order deeming them admitted... [and t]hose deemed admissions conclusively negate essential elements of Plaintiff’s Song-Beverly claims... claims for negligence and establish the absence of any recoverable damages.” (Defs.’ memorandum of points and authorities in support of first motion for judgment on the pleadings (“Defs.’ memo re first JOP”), p.3:9-13.) In its order regarding the motion, the Court noted that “[i]n support of their motion, Defendants presented a tentative ruling and a proposed order submitted on February 18, 2026 that ‘remains waiting for the final signature of the Court.’” The Court further noted that “Defendants did not request judicial notice of any order in connection with their motion.... [however, t]hereafter, in connection with their reply brief, Defendants requested judicial notice of the March 10, 2026 order regarding the matters in the RFAs as conclusively established.”

In denying Defendants’ motion for judgment on the pleadings, the Court stated:

Here, Defendants did not present the March 10, 2026 order in connection with their motion. While the Court may, in addition to the facts pleaded, consider matters that are proper subjects of judicial notice, including a party’s admissions, the matter upon which the motion was premised was not presented. Indeed, the Vanderhoof declaration plainly states that Defendants did not have a final order regarding the matters in the RFAs. Instead,

Defendants did not request judicial notice of the March 10, 2026 order until after Plaintiff had filed his opposition. The Court may not consider Defendants' request for judicial notice, made for the first time in reply, as it violates Plaintiff's due process rights. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316 (stating that "the evidence... was not filed until after assignee had responded to the issues... [i]n considering this evidence, the court violated assignee's due process rights"); see also *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 228 (Sixth District stating that "[t]he general rule of motion practice... is that new evidence is not permitted with reply papers"); see also *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 (stating same); see also *Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1210 (stating same); see also *City of Rocklin v. Legacy Family Adventures-Rocklin, LLC* (2022) 86 Cal.App.5th 713, 730 (stating same).) These issues are also more properly the subject of a motion for summary judgment. Defendants' motion for judgment on the pleadings is DENIED in its entirety.

(July 7, 2026 minute order re: Defs.' first motion for judgment on the pleadings, pp.1-2.)

On July 15, 2026, Defendants again moved for judgment on the pleadings, again arguing that "[o]n March 10, 2026, this Court issued its Order deeming admitted Ford's Requests for Admission ('RFAs')... [t]hose deemed admissions conclusively negate a essential elements of Plaintiff's Song—Beverly claims... claims for negligence and establish the absence of any recoverable damages." (Defs.' memorandum of points and authorities in support of second motion for judgment on the pleadings, p.3:9-12.) "Code of Civil procedure section 1008 prohibits a party from filing repetitive motions for the same relief...." (*Farber v. Bay View*

Terrace Homeowners Assn. (2006) 141 Cal.App.4th 1007, 1015; see also *People v. Silva* (1981) 114 Cal.App.3d 538, 554 (stating that “[o]rdinarily, a court will refuse to consider repeated motions supported by substantially the same showing as the one denied”).) Defendants do not show by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown, as required by section 1008, subdivision (b), and thus, the instant motion cannot be considered as a motion made pursuant to section 1008. (See *Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1200 (stating that “section 1008 is jurisdictional”); see also *Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 383 (stating that “case law interpreting section 1008 has specifically held that a moving party must give a satisfactory explanation for the previous failure to present the allegedly new or different evidence or legal authority offered in the second application”); see also *Cradduck v. Hilton Domestic Operating Co., Inc.* (2025) 112 Cal.App.5th 284, 304 (stating that “[a] party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time... [h]e does not offer any argument why any or all of this evidence, with reasonable diligence, could not have been presented at or prior to the July 14 hearing... [a]ccordingly, he did not make the requisite showing necessary for a motion for reconsideration under section 1008... Section 1008, subdivision (e) states: ‘This section specifies the court’s jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section.’ Thus, section 1008 is jurisdictional”); see also *Goncharov v. Uber Technologies, Inc.* (2018) 19 Cal.App.5th 1157, 1167 (stating that “a party cannot seek to dismiss the same claim based on a previously rejected argument without seeking reconsideration”).) Moreover, the Court was not mistaken with regards to the first motion for judgment on the pleadings—Defendants did fail to present any judicially noticeable facts in connection with its first motion that established that any order deemed certain RFAs as admitted.

The prior ruling was not erroneous and there has been no change of law that warrants reconsideration; the Court does not reconsider its prior ruling on its own motion either.

As Defendants' second motion for judgment on the pleadings is in actuality a motion for reconsideration that does not comply with section 1008, Defendants' motion is DENIED in its entirety.

Plaintiff shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 6

Case Name: JPMorgan Chase Bank, N.A. v. Ryan Ourique

Case No.: 25CV461251

BACKGROUND

Plaintiff JPMorgan Chase Bank, N.A. ("Plaintiff") brings this action for breach of contract against Defendant Ryan Ourique ("Defendant") with regards to a credit card account. Plaintiff alleges "Defendant failed to make payments on the contract as agreed, and despite Plaintiff's demand, Defendant continues to refuse to pay Plaintiff the amount owed under the contract." (Complaint at p. 3.) Defendant is in default and the unpaid balance owed is \$7,796.11. (*Ibid.*)

Defendant moves to arbitrate these claims based on the Arbitration Agreement contained in the Cardmember Agreement ("the Agreement"). Having reviewed the Agreement, the Court concludes the motion should be granted.

LEGAL STANDARD

Defendant maintains the Federal Arbitration Act ("FAA") governs the Agreement. The Agreement provides, "[t]his agreement to arbitrate is governed by the Federal Arbitration Act, 9

U.S.C. §§ 1 et seq.” (Mtn to Compel Arbitration, Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

ANALYSIS

There is a Valid Agreement to Arbitrate

A valid agreement to arbitrate exists between the parties. “[T]he moving party bears the burden of producing ‘prima facie evidence of an agreement to arbitrate the controversy.’ The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166 [internal citations and quotations omitted].) Here, Defendant has attached a copy of the Cardmember Agreement containing the arbitration clause as an exhibit to his motion. (Mtn. to Compel Arbitration, Ex. A.) Although the Agreement does not bear any signatures by either party, “it is not the presence or absence of a signature which is dispositive; it is the presence or absence of evidence of an agreement to arbitrate which matters.” (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 361 [emphasis in original].) In this instance, the memorialized terms of arbitration in the Cardmember Agreement are evidence of an agreement to arbitrate. Additionally, Defendant’s effort to enforce the Agreement is evidence of his intent to be bound by its terms as is Plaintiff’s non-opposition to this motion. (*Serafin v. Balco Properties, LLC* (2015) 235 Cal.App.4th 165, 176 [“Evidence confirming the existence of an agreement to arbitrate, despite an unsigned agreement can be based, for example on conduct from which one could imply either ratification or implied acceptance of such a provision.”].) Therefore, a valid agreement to arbitrate exists between the parties.

The Scope of the Agreement Covers Plaintiff’s Claims

The scope of the Arbitration Agreement contained in the Cardmember Agreement covers Plaintiff's claims. The Agreement provides:

This arbitration agreement provides that all disputes between you and Chase must be resolved by BINDING ARBITRATION whenever you or we choose to submit or refer a dispute to arbitration . . .

All claims or disputes between you and us about or relating to in any way to your account, any prior account, your Cardmember Agreement with us (including any future amendments), any prior Cardmember Agreement, or our relationship are referred to as "Claims" for purposes of this agreement to arbitrate. Claims include, for example, claims or disputes arising from or relating in any way to transactions involving your account; any interest, charges, or fees assessed on your account; any service(s) or programs related to your account; any communications related to your account; any collection or credit reporting of your account.

(Mtn. to Compel Arbitration, Ex. A.)

Plaintiff's claim pertains to the credit card account held by Defendant. Plaintiff's allegations are that Defendant has failed to make payments on the account and is now in default of \$7,796.11.

(Complaint at p. 3.) Thus, Plaintiff's claims are covered by the scope of the Agreement.

Plaintiff does not object to these arguments and has instead filed a "Limited non-opposition to motion to compel arbitration." As the claimant in this action, Plaintiff may select either JAMS or AAA in accordance with the Agreement. (See Mtn. to Compel Arbitration, Ex. A.) For these reasons, the Court GRANTS the Motion to Compel Arbitration. This action is hereby STAYED pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

CONCLUSION

The Motion to Compel Arbitration is GRANTED. This action is STAYED pending the outcome of arbitration.

The Court will prepare the order.

Calendar Line 7

Case Name: *Brandon Hilburn v. Ford Motor Company et al.*

Case No.: 24CV453635

This is a lemon law action. Defendant Ford Motor Company (“Ford”) moves for summary adjudication as to the sixth cause of action for fraudulent inducement alleged in the complaint filed by plaintiff Brandon Hilburn (“Hilburn”).

I. REQUESTS FOR JUDICIAL NOTICE

Hilburn requests that the court judicially notice five documents in support of his opposition to Ford’s motion for summary adjudication. (Hilburn’s Request for Judicial Notice in Support of Motion for Summary Adjudication (“Hilburn RJN”), p. 2:8-22.) According to Hilburn, these are documents taken from the website of the National Highway Traffic Safety Administration (“NHTSA”). (*Id.* at p. 2:2-7.)

The court acknowledges that Courts of Appeal have judicially noticed a government website. (See *Shaw v. People ex rel. Chiang* (2009) 175 Cal.App.4th 577, 606, fn. 10 [taking judicial notice of the California Department of Transportation’s website], overruled on other grounds by *County of San Diego v. Commission on State Mandates* (2018) 6 Cal.5th 196, 214, fn. 4.) However, while the court can take judicial notice of the existence of a government website, it cannot accept the website’s contents as true. (See *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 193 (*Ragland*) [“Ragland’s request for judicial notice requires us (with one exception) to take judicial notice of, and accept as true, the contents of those exhibits. While we may take judicial notice of the existence of the audit report, Web sites, and blogs, we may not accept their contents as true. . . . Although the audit report is a government document, we may not judicially notice the truth of its contents.”], internal citation omitted; *Jolley v. Chase Home Finance LLC* (2013) 213 Cal.App.4th 872, 889 [“[W]e know of no ‘official web site’ provision for judicial notice in California.”], internal citation omitted; *Searles Valley Minerals Operations, Inc. v. State Bd. of Equalization* (2008) 160 Cal.App.4th 514, 519 [affirming denial of request to take notice of the truth of the contents of web site pages of the American Coal Foundation and the U.S. Department of Energy]; *Duronslet v. Kamps* (2012) 203 Cal.App.4th 717, 737 [refusing to take judicial notice of information on the California Board of Registered Nursing web site]; *Ragland, supra*, 209 Cal.App.4th at p. 194 [noting that “[t]he contents of web sites and blogs are plainly subject to interpretation and for that reason not subject to judicial notice”], internal citation and quotation marks omitted.)

As such, the court will grant judicial notice of the existence of Exhibits 1 through 5 to Hilburn’s request. However, the court declines to judicially notice the truth of the contents of these exhibits.

II. DISCUSSION

A. Legal Standard

On a motion for summary judgment or adjudication, the moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action

cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72, internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, at p. 850.) A “party cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact.” (*Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1378, internal citations and quotation marks omitted.)

B. Motion for Summary Adjudication

Ford moves for summary adjudication as to the complaint’s sixth cause of action for fraudulent concealment. “The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348 (*Burch*), internal citation omitted.)

Ford argues that Hilburn cannot prove the necessary elements of the complaint’s sixth cause of action because “there is no evidence that: (1) the Subject Vehicle was manufactured with a ‘Transmission Defect;’ and, (2) Ford knew of this ‘defect’ and concealed the ‘defect,’ inducing Plaintiff into purchase [sic] the Subject Vehicle.” (Notice of Motion for Summary Adjudication, p. 1:8-12.) Ford directs the court to Hilburn’s responses to discovery propounded by Ford. (Memorandum of Points and Authorities in Support of Motion for Summary Adjudication (“MPA”), pp. 2:22-4:13, 6:18-7:20.)

“[A] moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision [(p)(1)]. Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact.” (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.)

Ford directs the court to Hilburn’s responses to three special interrogatories. (See Declaration of Katherine P. Vilchez in Support of Motion for Summary Adjudication (“Vilchez Decl.”), Ex. C at pp. 19:3-22:9.) In response to a special interrogatory requesting that Hilburn state all facts supporting the allegations underlying the complaint’s sixth cause of action, Hilburn responded that such information “may be found in the complaint and documents produced in connection with Plaintiff’s responses” to Ford’s requests for production. (*Id.* at p. 19:22-20:3.) In response to a special interrogatory requesting that Hilburn identify all persons with knowledge of facts supporting the complaint’s fraud allegations, Hilburn identified himself, Ford, and Ford’s “agents, representatives, and employees.” (*Id.* at pp. 20:26-21:6.) In response to a special interrogatory requesting that Hilburn identify all documents supporting the complaint’s fraud

allegations, Hilburn referred Ford to documents Hilburn produced in response to Ford's requests for production. (*Id.* at pp. 21:28-29:7.)

Ford also directs the court to documents Hilburn produced in response to Ford's requests for production. (Vilchez Decl., Ex. D.) These documents include a retail installment sale contract, a transfer and reassignment form, a deficiency waiver addendum, a maintenance plan application, pre-contract disclosure, and invoices from a maintenance center, among others. (*Ibid.*)

Having reviewed the discovery responses and evidence described above, the court is inclined to agree with Ford that Hilburn's discovery responses are "factually devoid" such that an "absence of evidence may be reasonably inferred." The complaint alleges that Ford committed fraud by allowing a 2020 Mustang to be sold to Hilburn without disclosing that the vehicle and "its 6-speed Transmission were defective and susceptible to sudden and premature failure." (Complaint, ¶ 52.) However, the various documents produced by Hilburn and relied on in answering Ford's discovery responses do not establish that Ford intentionally concealed or suppressed a material fact. (See *Burch, supra*, 34 Cal.App.5th at p. 348.) Moreover, the court notes that Hilburn does not respond to Ford's argument or evidentiary showing in his opposition. (Opposition to Motion for Summary Judgment ("Opposition"), p. 5:1-3 ["Defendant's challenge to the Sixth Cause of Action fails because triable issues of material fact exist, including as to Defendant's fraudulently inducing Plaintiff to purchase the Vehicle through its concealment of the transmission defects at issue."].)

The burden shifts to Hilburn to demonstrate a triable issue of material fact. To demonstrate a triable issue of material fact as to whether Ford had knowledge of any transmission defect, Hilburn relies upon documents that he has requested that the court judicially notice. (Opposition, pp. 7:10-9:5.) While the court has judicially noticed the existence of these documents, it has not noticed the truth of these documents' contents. Hilburn, however, relies on the contents of these documents to support his argument that Ford had knowledge of the alleged transmission defect. For example, Ford notes that a technical service bulletin shows that "some 2018 Mustang vehicles equipped . . . with a manual transmission may exhibit an inability or difficulty to shift the vehicle into second gear . . . this TSB demonstrates that Ford was aware of second-gear shifting defects . . ." (Opposition, p. 8:1-9.) Similarly, Hilburn discusses the NHTSA's purported investigation into consumer complaints "about the inability to shift gears in 2011-2012 Ford Mustangs equipped with a six-speed manual transmission . . ." (*Id.* at p. 7:17-27.) While a court can "take judicial notice of the existence of . . . Web sites . . . [it cannot] accept their contents as true. . . ." (*Ragland, supra*, 209 Cal.App.4th at p. 193, internal citation omitted.)

Therefore, the court finds that Hilburn has failed to demonstrate a triable issue of material fact. Moreover, the court is inclined to agree with Ford on reply that even if the court considered the materials discussed above, Hilburn would still not have demonstrated a triable issue of material fact. (Ford's Reply in Support of Motion for Summary Judgment, p. 3:3-22.) The four technical service bulletins submitted by Hilburn concern the following vehicles: the 2018 Ford Mustang, 2018-2019 Ford Mustangs, and 2015-2019 Ford Mustangs. (Hilburn RJN, Ex. 2 at p. 1; Ex. 3 at p. 1; Ex. 4 at p. 1; Ex. 5 at p. 1.) The NHTSA report concerns the "2011-2012 Ford

Mustang manual transmission.” (*Id.*, Ex. at p. 1.) The complaint, however, alleges that Hilburn entered into a warranty contract with Ford regarding a 2020 *Ford Mustang*. (Complaint, ¶ 10.) Given this, it does not appear to the court that the documents Hilburn requests judicial notice of apply to the vehicle that is the subject of Hilburn’s complaint.

Counsel for Hilburn has provided a declaration stating: that (1) the consumer complaints subject to the NHTSA’s investigation were “equipped with a six-speed manual transmission that on information and belief was the predecessor six-speed transmission to the transmission used in the 2020 Mustang model . . .”; and (2) Ford was aware of “second-gear shifting defects in the manual transmission installed in 2018 Mustangs—the same transmission family used in the 2020 Subject Vehicle . . .” (Declaration of Benjamin Fuchs in Support of Opposition to Motion for Summary Judgment (“Fuchs Declaration” or “Fuchs Decl.”), ¶¶ 6-7.)

Ford objects to these statements on hearsay and foundation grounds, among other reasons. First, declarations “based on information and belief are insufficient to satisfy the burden of either the moving or opposing party on a motion for summary judgment or adjudication.” (*Lopez v. University Partners* (1997) 54 Cal.App.4th 1117, 1124, internal citations omitted.) Second, the Fuchs Declaration directs the court to no evidence indicating that Ford’s 2018 and 2020 Mustangs are of the “same transmission family” and Fuchs otherwise does not provide a sufficient factual foundation for this statement in his declaration. The court SUSTAINS Ford’s second and third evidentiary objections. The court declines to rule on Ford’s remaining evidentiary objections, which are not material to the outcome of this motion. (Code Civ. Proc., § 437c, subd. (q) [“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.”].)

III. CONCLUSION

The court GRANTS Defendants’ motion for summary adjudication as to the complaint’s sixth cause of action.